

#	Case Name	Tentative
1	25-01518276 <i>Ortega vs. Santa Ana Unified School District</i>	Motion to Strike Portions Of Complaint Defendant Zully Rodriguez’s Motion to Strike Portions of the Complaint is GRANTED with 20 days leave to amend. The references to Rodriguez in paragraphs 33 and 65 and paragraph 6 of the prayer are ORDERED stricken. “In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.” (<i>Clauson v. Superior Court</i> (1998) 67 Cal.App.4th 1253, 1255.) Additionally, “[i]n passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (<i>Ibid.</i>) A demand for punitive damages for the commission of any tort requires more than the mere allegation of the “oppression, fraud, and malice” language found in Civil Code section 3294. (See <i>Perkins v Superior Court</i> (1981) 117 Cal.App.3d 1, 6-7.) “[F]acts must be alleged in the pleading to support such a claim.” (<i>Grieves v. Superior Court</i> (1984) 157 Cal.App.3d 159, 166.) The facts alleged must show the defendant “act[ed] with the intent to vex, injure or annoy, or with a conscious disregard of the plaintiff’s rights.” (<i>Silberg v. California Life Ins. Co.</i> (1974) 11 Cal.3d 452, 462.) Section 3294, subdivision (c) defines malice, oppression and fraud as follows: “(1) ‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. [¶] (2) ‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights. [¶] (3) ‘Fraud’ means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” Plaintiff’s allegations against Rodriguez are insufficient to support of claim for punitive damages. Plaintiff claims Rodriguez had violent outbursts toward Plaintiff, including yelling and calling Plaintiff stupid and arguing. These allegations do not show a conscious disregard for the rights and safety of others, thus it is not malicious or oppressive within the meaning of Section 3294. Additionally, the conduct alleged as to the school children does not support a claim for punitive damages as to Plaintiff. Plaintiff cites no authority which would allow her to claim punitive damages for conduct to those unrelated to her. Leave to amend is granted because it is not evident from the face of the complaint that it is unable to be amended. (See <i>City of Stockton v. Superior Court</i> (2007) 42 Cal.4th 730, 747.)